

## **VI. COMPLAINTS**

1. Any guarantee of specific properties of or in the goods shall only be effective if and when confirmed in writing by Seller.
2. Complaints about quality shall only be made for goods that have been sold as "first quality". Slight deviation of natural or dyed color shall not be deemed a defect in quality unless it should result in a marked reduction in the useful value of the products made thereof.
3. Any complaint identified by sight shall be made in writing within 24 hours from the date of receipt of goods with necessary evidence.
4. Any complaints of technical nature shall be notified by the buyer in writing within 30 days from the date of the receipt of the goods and shall be submitted along with evidence, samples, packing lists, number of cases or packages etc. or any other details as may require as evidence. The burden of prove shall rests with Buyer.
5. If Buyer fails to notify any fault within the period specified above or if the goods in respect of which there is a claim are processed in any way or sold without written consent by Seller, all claims with respect to faults shall become null and void.
6. If Buyer has made a claim in accordance with the provisions of this Article which proves justified, Seller shall offer a reasonable reduction of the invoice price or replacement of the goods concerned to the extent they have not been treated or processed.

## **VII. LIMITATION OF LIABILITY**

1. Seller's liability shall be limited to the immediate damage caused by defective goods. Any claims for damages, provided they are substantiated beyond doubt shall be limited to twice the invoiced value of the processed defective goods.
2. Where Seller gives technical advice to Buyer with respect to the processing or treatment of the goods, it is agreed that such advice is given without any liability on Seller's part.

## **VIII. PACKING MATERIAL**

If Buyer fails to return any yarn supports/shell rolls or other packing material which remain Seller's Property within the period of time to be fixed by Seller and in a state allowing their reuse, Seller shall be entitled to debit Buyer account for the same at replacement value and to demand immediate payment, therefore.

## **IX. TRADEMARKS**

In case of goods sold under a trademark, such trademarks shall not be used for products made from these goods without the prior written consent of Seller.